

25STCV22971 25STCV22971

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Case Number: 25STCV22971 Hearing Date: July 1, 2026 Dept: 617

Dept.

617

Date:

7-1-26

Case

#: 25STCV22971

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Plaintiff, Sidetrack Agency, LLC

RESPONDING

PARTY: Defendant, Live Nation Worldwide, Inc.

RELIEF

REQUESTED

Demurrer

to Amended Answer

SUMMARY

OF ACTION

Defendant

Live Nation Worldwide, Inc. hired Plaintiff Sidetrack Agency, LLC to build, install, dismantle, store, and transport a “brand activation” for music festivals throughout the country. The structure, called the “Hacienda,” promoted the products of Bacardí Patrón. Plaintiff alleges that despite the successful debut of the Hacienda, Defendant terminated Plaintiff’s services, retained the Hacienda materials for future festivals, and refused to pay. On August 5, 2025, Plaintiff filed a complaint for: (1) Breach of Contract; (2) Unjust Enrichment; (3) Quantum Meruit; (4) and Violation of Business and Professions Code section 17200 et seq.

RULING: Sustained in part.

Plaintiff demurs to the first, fifth through seventh, tenth through eleventh, and thirteenth through fourteenth affirmative defenses in Defendant’s amended answer.[1] It argues these defenses are insufficiently pled, fail to identify the causes of action they apply to, and are uncertain. Defendant opposes the demurrer, maintaining the sufficiency of its defenses. Plaintiff concedes that affirmative defenses 10, 11, and 14 are not affirmative defenses, but denials. They are thus not at issue. Plaintiff’s demurrer is sustained with leave to amend as to affirmative defense 7 and sustained without leave to amend as to affirmative defense 13. The demurrer is overruled as to affirmative defenses 1 and 5-6.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has

been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2 [“[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend”].)

An “answer to a complaint must include ‘[a] statement of any new matter constituting a defense.’ The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as ‘new matter.’ [Citation.] Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not ‘new matter,’ but only a traverse.” (Walsh v. West Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1546.) Affirmative defenses must aver facts “as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.” (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384.)

The demurrer is overruled as to affirmative defenses 1 and 5-6. The statement in affirmative defense 1 that the “Complaint, and each purported cause of action therein, fails to state facts sufficient to constitute a cause of action against Defendant” is sufficient to raise this defense. (See Baker v. Sudo (1987) 194 Cal.App.3d 936, 942, fn. 7.) Plaintiff challenges affirmative defense 5 only as to its UCL claim; however, the defense is raised as to all of Plaintiff’s causes of action and stands as to those claims. The Court declines to consider insufficiencies in the facts supporting the defense because Plaintiff asserts this point for the first time in reply. (Maleti v. Wickers (2022) 82 Cal.App.5th 181,

227-28.) Affirmative defense 6 sufficiently identifies that the offset is based on repairs Defendant made to remediate alleged unsafe conditions in the delivered Hacienda. [Amended Answer at p. 5:15-20.]

The demurrer is sustained with leave to amend as to affirmative defense 7 (equitable estoppel) and sustained without leave to amend as to affirmative defense 13 (comparative fault). "Equitable estoppel requires that: (1) the party to be estopped was aware of the operative facts and either intended that its act or omission be acted upon, or acted in such a way that the party asserting estoppel rightfully believed it was intended; and (2) the party asserting estoppel was unaware of the facts and relied on the other party's conduct to its detriment." (Gaines v. Fidelity Nat. Title Ins. Co. (2016) 62 Cal.4th 1081, 1097.) Defendant does not allege that Plaintiff had knowledge that the Hacienda would be defective. Because there is a reasonable possibility that Defendant can cure this defect, it is granted leave to amend. The demurrer to affirmative defense 13 is sustained without leave to amend because "contractual breaches are generally excluded from comparative fault allocations." (Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390, 402.)

Defendant is granted 30 days' leave to amend. Affirmative defense 7 and defenses conceded by Plaintiff may be amended.

Plaintiff to give notice.

[1] On June 17, 2026, Defendant dismissed the twelfth and fifteenth affirmative defenses.